

Naresh Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 December 2018 · WRIT - C No. 39781 of 2018 · **Writ disposed with liberty to apply to the Executive Engineer for installment facility under Supply Code 6.14; EE to pass a speaking order fixing installments and consider restoration on payment of an initial amount.**

HEADNOTE

A consumer willing to pay outstanding electricity dues in installments and seeking restoration after a bill-cum-disconnection notice is relegated to the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005. The writ court does not decide the demand. The Executive Engineer shall pass a speaking order fixing installments and consider restoration of supply on payment of such initial amount as may be considered proper.

FACTUAL SUMMARY

The petitioner challenged a bill-cum-disconnection notice of the distribution licensee demanding Rs. 1,06,029. Counsel submitted that the demand notice itself claimed only Rs. 55,717, but the petitioner was ready to pay the entire outstanding amount and sought restoration of the electricity connection, asking to discharge the dues in installments. The State and the licensee's officers were respondents. The Court heard counsel for the petitioner, the State, and the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment-facility-restoration

HOLDING

Clause 6.14 empowers the Executive Engineer to grant installment facility for outstanding electricity dues. Where the consumer is willing to pay and seeks restoration after a bill-cum-disconnection notice, the writ is disposed with liberty to apply to the Executive Engineer within two weeks; the Executive Engineer shall pass a speaking order fixing installments and shall consider restoration of supply on payment of such initial amount as may be considered proper. The High Court does not itself determine the disputed demand or direct restoration. ¶ 1

FLAG Court cited 'Section 6.14 of the Electricity Supply Code, 2014'; clause 6.14 is of the U.P. Electricity Supply Code, 2005.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RS. 1,06,029 BILL-CUM-DISCONNECTION DEMAND VIS-À-VIS THE ALLEGED DEMAND OF RS. 55,717

The Court recorded the petitioner's willingness to pay the entire amount and did not adjudicate the quantum. ¶ 1